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CASE #	CASE NAME	HEARING NAME
CVPS2304017	MIRAMORE, LLC VS TYLER	MOTION TO QUASH SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS BY AC PALM DESERT CORPORATION, JOHN WHITE

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This is a fraud action by Plaintiff Miramore, LLC against Defendants Richard Tyler, Lisa Trafficante, AC Plam Desert Corporation, John white, Brian Sullivan, Hilgenberg Realty, inc. and Advantage Inspection Professionals, LLC alleging 8 causes of action for 1) violation of Civil Code section 1102, et. se1., 2) failure to disclose material facts, 3) fraud, 4) breach of duty to disclose, 5) breach of duty to be honest and truthful, 6) negligence, 7) negligence, and 8) negligence.

Defendant Lisa Trafficante filed a Cross-Complaint against Richard Tyler, AC Palm Desert Corporation and John White.

Defendant/Cross-Defendant John White moves the court to quash Plaintiff Miramore, LLC's subpoena issued to GoDaddy.com, LLC for the production of business records, or in the alternative for a protective order. AC and White assert that the SDT seeks information protected by federal law and violates Defendants' rights to privacy, is overbroad and unduly burdensome and seeks information obtainable through less intrusive means.

In opposition, Miramore, LLC asserts that White cannot dispute that his emails concerning the underlying real estate transaction are discoverable. Plaintiff served the focused subpoena to GoDaddy only after ordinary discovery failed and the SDT should not be quashed merely because White later announced that the previously "lost" emails had been recovered. Plaintiff first requested the emails from Defendant through written discovery. His verified responses promised production, but no responsive emails were produced. Defense counsel later explained that the emails had been lost when Defendant replaced his laptop. At his deposition, Defendant admitted that GoDaddy hosted his email account, that he had never contacted GoDaddy about recovery, and that he could not recall searching his cell phone for responsive emails. Plaintiff then provided defense counsel with a draft subpoena and repeatedly invited objections or proposed revisions. After receiving no response to the draft or three follow-up inquiries, Plaintiff served Defendant with the Notice to Consumer and subpoena. When Defendant objected, Plaintiff proposed an Informal Discovery Conference and addressed each concern raised by defense counsel, including by offering to exclude identified attorneys, law firms, and email addresses. Although defense counsel requested that the subpoena be narrowed, counsel did not provide the names, addresses, search terms, or other specific revisions necessary to implement those exclusions, and did not respond to Plaintiff's proposal for an IDC. Separately, on March 23, 2026—after receiving the Notice to Consumer—defense counsel disclosed for the first time that Defendant's technical professional had recovered certain data and that responsive, nonprivileged emails would be reviewed and produced. Nearly four months later, no responsive emails have been produced. That late recovery does not eliminate Plaintiff's reasonable need to verify the completeness and integrity of the production through the independent custodian. The subpoena is confined to a relevant period, identified participants and subjects, and communications concerning the later recovery effort.

In reply, White asserts that the opposition concedes the two facts that dispose of this motion. First, the Subpoena commands GoDaddy to produce the contents of Mr. White's stored email.

Second, Mr. White has never consented to that disclosure. Plaintiff's own principal authority resolves what follows. AC and White cite to *Negro v. Superior Court* (2014) 230 Cal.App.4th 879 in support of this assertion. AC and White assert that as there is no consent and no court order the subpoena as served is unenforceable and should be quashed.

Motion to Quash

Code of Civil Procedure section 1987.1, which applies to subpoenas, states in turn: (a) If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands . . . (CCP §1987.1.)

Here, White moves to quash the subpoena on the grounds it is prohibited by the Stored Communications Act, 18 U.S.C. section 2702(b)(3). The Act states that a provider of an "electronic communication service ... shall not knowingly divulge ... the contents of a communication while in electronic storage by that service...." (18 U.S.C. §2702(a)(1).) a provider is only excused from these prohibitions if the user gives "lawful consent" to disclosure. (18 U.S.C. §2702(b)(3).) consent is effective as to a given communication if given by "the originator or an addressee or intended recipient of such communication." (18 U.S.C. §2702(b)(3).) Such consent may not be constructive, implied in law, or otherwise imputed to the user by a court. (*Negro v. Superior Court* (2014) 230 Cal.App.4th 879, 889.)

"[A]ny state law that requires a person to violate federal law, is preempted and unenforceable. (*Olszewski v. Scipps Health* (2003) 30 Cal.4th 798, 815.) Therefore California's discovery laws cannot be enforced in a way that compels [GoDaddy.com] to make disclosures violating the Act." (*Negro v. Superior Court* (2014) 230 Cal.App.4th 879, 889)

Miramore cites to *Negro* in support of its opposition asserting that the Act does not make all civil subpoenas unenforceable and the court can require White's consent on pain of discovery sanctions. *Negro* notes that if such consent is given then a civil subpoena for emails would not be in violation of the Act. While the court in *Negro* noted as much, it does not change the facts before the court, which is devoid of a court order requiring White to consent or be subject to discovery sanctions. Without White's consent, either voluntarily or given under the court's threat of discovery sanctions, the court is required to grant the motion to quash.